

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID WONG,

Petitioner

VS.

XIAOYAN MA,

Respondent

) Case Number: FDI-23-797598

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner David Wong (Father) and Respondent Xiaoyan Ma (Mother). The parties married on 3/3/2010. The parties disagree regarding their date of separation, but they agree their marriage lasted at least 12 years. The parties have one minor child, Jordan (DOB: 8/5/2011, age 14). Father is represented by attorney Frank Kim. Mother is self-represented.
- 2) On 11/8/2024, the Court issued a 2-Year Restraining Order After Hearing protecting Father against Mother. The restraining order is set to expire on 11/8/2026.
- 3) On 12/8/2025, following a trial before Judge Wiley which occurred on 4/9/2025, 4/17/2025, 6/11/2025, 7/8/2025, and 7/11/2025, Judge Wiley issued a Final Statement of Decision. Judge Wiley found that in February 2023, after the Petition for Dissolution and been filed and served, Mother transferred various life insurance policies to her adult daughter Shiyi Yang in violation of the ATROs. The Court found that these unilateral transfers are void. The Statement of Decision provides in pertinent part:

- a. Mother shall pay Father \$74,417.32, which constitutes half of the community property interest in the various identified life insurance policies or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies within 60 days of the date of the Final Statement of Decision.
- b. Following the equalization payment, the Court awards the life insurance policies insuring Father and Jordan to Father. Those policies, and the monthly premiums, will be transferred to Father as the owner of those policies. Those policy numbers are #8573 (insured party is Father), #8890 (insured party is Father), and #7087 (insured party is Jordan).
- c. Mother shall pay Father \$7,500 for prevailing party attorney's fees incurred pursuant to Family Code section 6344 and \$608 in costs within 45 days of the Final Statement of Decision.
- d. Father shall pay Mother \$20,000 in Family Code section 2030 attorney's fees within 45 days of the date of the Final Statement of Decision.

- 4) On 12/12/2025, Mother filed a Notice of Appeal of the 12/8/2025 Statement of Decision.
- 5) On 12/15/2025, a Court of Appeal Clerk filed a Notice of Filing of Notice of Appeal.
- 6) On 12/17/2025, Mother filed an Appellant's Notice Designating Record on Appeal.
- 7) On 12/17/2025, Mother filed a Request for Order. Mother states she does not have sufficient funds, assets, or access to credit to make the payments ordered within the Statement of Decision and she has no present ability to obtain such funds. Mother also states, "Although one item is currently titled in my name, I am presently unable to comply with the ownership or transfer provisions of the Final Statement of Decision because I lack unilateral legal authority and the practical ability to complete any transfer while the appeal is pending." Mother states, "Without a stay of enforcement, I face the risk of enforcement actions or sanctions despite my present inability to comply and the pendency of the appeal." Mother asks the Court to:
 - a. Stay enforcement of the 12/8/2025 Final Statement of Decision pending appeal;
 - b. Determine Mother's inability (not refusal) to comply;
 - c. Clarify the stay covers insurance equalization, attorney's fees, and ownership / transfer obligations; and

- d. Bar enforcement or sanctions as to those provisions during the appeal.
- 8) Within the Findings and Order After Hearing filed 4/17/2026, the Court adjudicated Mother's 12/17/2025 Request for Order and made the following findings and orders:
- a. The Court finds that the provision requiring Mother to pay Father \$74,417.32 in cash "or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies" is a money judgment under Code of Civil Procedure section 680.270 and that Code of Civil Procedure section 917.1(a) applies to Mother's request for a stay of enforcement of this provision.
 - b. Mother's request that the Court make a finding that Mother has an inability to comply with the identified portions of the Judgment is denied. The Court does not find that Mother has an inability to comply with the identified portions of the Judgment.
 - c. No later than Friday, 4/24/2026 at 5:00 PM Mother shall provide to the Department 404 Department Clerk a cashier's check in the amount of \$62,525.32 for an undertaking.
 - d. The Court will set a review hearing of Thursday, 5/28/2026 at 9:00 AM in Dept. 404 to review Mother's compliance with this order and to determine whether to grant Mother's request for a stay.
- 9) On 4/24/2026, Mother filed a Declaration stating that she is unable to comply with the Court's order requiring an undertaking because she lacks access to sufficient liquid funds.
- 10) On 5/12/2026, the Court denied an ex parte Request for Order filed by Mother that same day requesting that the Court reduce or permit partial and or installments on the undertaking pending appeal.
- 11) On 5/13/2026, Mother filed a Declaration asking the Court to "consider preservation of the existing status and structure of the life insurance policies pending appellate review and the practical effect that transfer, surrender, withdrawal, depletion, or other material alteration of the policies may have on meaningful appellate review before those appellate issues are resolved."
- 12) On 5/18/2026, Father filed a Declaration arguing that a stay is not justified in this matter and that Mother has no legal ground for winning her appeal. Father asks the Court to enforce Judge Wiley's Final Statement of Decision and transfer the following life insurance policies into his name: Transamerica life insurance policies #8573 (with a cash surrender value of \$83,074.77), #8890

(with a cash surrender value of \$65,792.84), and #7087 (with a cash surrender value of \$6,381.64). It appears Father is not asking for the full cash surrender value of these policies to be transferred to Father, but rather \$30,000 from policy #8573, \$30,000 from policy #8890, and \$2,525.32 from policy #7087, for total cash value of \$62,525.32 which is the net amount Mother owes Father.

13) On 5/19/2026, Mother filed a Declaration. Mother states that the insurance policies at issue were originally funded using money connected to property sale proceeds from China involving her adult daughter Shiyi Yang. Mother states that because the policies were funded using money connected to Shiyi Yang, Shiyi Yang's interests are implicated in Father's requests that policies be transferred to him. Mother states that Shiyi Yang is the owner of policies #8890 and #7087. Mother states the policies should not be accessed, withdrawn against, surrendered, depleted, transferred, or otherwise materially altered before completion of the appeal. Mother states, "Preservation of the existing condition and structure of the policies is necessary to maintain the status quo while the appellate issues concerning ownership, transfer, valuation, equalization, and third-party interests remain unresolved."

14) On 5/21/2026, Father filed a Declaration stating that Judge Wiley already determined that the home in China whose proceeds were used to purchase the life insurance policies belonged to Mother and not her daughter Shiyi Yang. Judge Wiley also determined that transfer of ownership of the life insurance policies to Shiyi Yang only occurred after Mother filed for Dissolution of Marriage, and that transfer is void because it is in violation of the ATROs. Father reiterates his request that the identified policies be transferred to him.

15) On 5/22/2026, Mother filed a Reply Declaration reiterating her request that the Court deny Father's requests, preserve the disputed policies, and maintain the status quo pending appellate review.

B. Findings and Order

1) On the Court's own motion, the Court hereby joins Shiyi Yang as a party to this proceeding under California Rules of Court, rule 5.24(e)(2). The Court will issue a Summons (Joinder), which will be mailed to both parties. No later than 6/15/2026, Mother must: (a) have Ms. Yang served with a copy of the Summons as well as a copy of the Findings and Order After Hearing for the

1 5/28/2026 hearing date using a service method set forth in California Rules of Court, rule 5.68
2 and (b) file a Proof of Service of Summons (POS-010) showing compliance with this order and
3 serve a copy of the POS-010 on Father's attorney.

4 2) Ms. Yang is precluded from transferring ownership of or making any changes to TransAmerica
5 life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is also precluded from
6 borrowing against, withdrawing, or transferring any of the cash surrender values of these
7 plans. In other words, TransAmerica life insurance policies ending in #8573, #8890, and #7087
8 are hereby frozen.

9 3) As soon as possible, Father shall have a copy of the Findings and Order After Hearing for the
10 5/28/2026 hearing date served on the appropriate TransAmerica representative to inform
11 TransAmerica of this order and he shall also file and serve a Proof of Service evidencing service
12 of this order.

13 4) The Court will set a hearing on **Thursday, 7/9/2026 at 9:00 AM in Dept. 404** to review the
14 parties' compliance with the above orders. Assuming Mother has complied, the Court will
15 determine whether to grant Mother's request for a stay.

16 5) The Court will prepare the Findings and Order After Hearing.
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